

24NNCV02870 24NNCV02870

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-08-14

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=BUR%2CB%2C08%2F14%2F2026

Source SHA-256: 86f4aac1cc7015a664e401af242bffd8fcb1d46a49fd541bf257e8c691521e6

Case Number: 24NNCV02870 Hearing Date: August 14, 2026 Dept: B

Hon. Victor Avila, Dept B

MOTION to Compel Deposition; Request for Sanctions

Hearing Date: 8/14/26

CASE NO.: 24NNCV02870

CASE NAME: Yesayan v. AVB Studio City III-A, LP, et al.

Moving Party: Plaintiff Silva Yesayan

Responding Party: Defendant AVB Studio City III-A, LP

Notice: Sufficient

Ruling:

GRANT.

NOTICE

The Court is not requesting oral argument on this matter/motion. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to argue as to this matter/motion. The tentative ruling will

become the ruling of the court if no argument is received. Notice may be given either by email at or by telephone at (818) 260-8422.

Parties must appear on all other matters scheduled for this case.

BACKGROUND

This is an action arising from habitability concerns, conditions, water intrusion, and eviction. On July 12, 2024, plaintiff Silva Yesayan (Plaintiff) filed the initial Complaint against defendant AVB Studio City III-A, LP (Defendant). On October 7, 2024, Plaintiff filed the First Amended Complaint alleging breach of implied warranty of habitability, breach of covenant of quiet enjoyment, negligence, private nuisance, fraudulent/bad faith eviction, wrongful eviction, breach of contract, intentional infliction of emotional distress, abuse of legal process, and declaratory relief.

On July 15 and 17, 2026, Plaintiff filed the instant motions to compel deposition of Defendant's person most qualified (PMQ/PMK). The Court notes that two motions were filed along with two hearing reservations (Res IDs: 9670 and 8064) seeking the same order to compel deposition.

On August 3, 2026, Defendant filed an opposition to the motion. On August 7, 2026, Plaintiff filed a reply.

LEGAL

STANDARD

A motion to compel deposition "shall be accompanied by a meet and confer declaration under Section 2016.040." (Code Civ. Proc., § 2025.450, subd. (b)(2).) "A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion." (Code Civ. Proc., § 2016.040.)

The Code of Civil Procedure provides: "If, after service of a deposition notice, a party to the action . . . without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the

notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice." (Code Civ. Proc., § 2025.450, subd. (a).)

A motion under subdivision (a) shall comply with both of the following:

(1) The motion shall set forth specific facts showing good cause justifying the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.

(2) The motion shall be accompanied by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance.

(Code Civ. Proc., § 2025.450, subd. (b).)

DISCUSSION

Plaintiff

moves the Court for an Order compelling Defendant to designate and produce one or more properly named Persons Most Qualified (PMQ) to testify on behalf of Defendant. (Mot. filed 7/15/26 (Mot. 1), p. 2.) Plaintiff also seeks imposition of sanctions in the amount of \$2,685.00. (Ibid.)

Meet and Confer

Plaintiff's

counsel declares having engaged in extensive meet and confer efforts regarding the timing of the deposition and Defendant's objection to several deposition topics and document requests. (Mot. 1, p. 5; Bakhdanyan Decl., ¶ 5.) Defendant's counsel declares having initiated the meet and confer efforts via email. (Yamabe Decl., ¶ 6.) Defendant's counsel declares subsequently meeting via phone about the PMQ, but says the parties were unable to come to an agreement. (Yamabe Decl., ¶ 10.)

Although

they were unable to come to an agreement, the parties have satisfied meet and

confer requirements.

Motion to Compel Deposition

Plaintiff

states that they served an amended notice of taking deposition of PMK and request for production of documents on Defendant on June 22, 2026. (Mot. 1, p. 5.) Plaintiff argues that Defendant repeatedly insisted Plaintiff narrow the scope of the deposition before they would produce a PMQ and the parties never reached an agreement. (Ibid.) Further, Plaintiff argues that Defendant must provide a PMQ because they are a business entity and cannot unilaterally restrict the scope of Plaintiff's deposition. (Mot. 1, pp. 6, 8.) Plaintiff argues that the challenged topics are directly relevant and Defendant should have sought a protective order if they wanted to restrict the scope of the Deposition. (Mot. 1, p. 8.)

In

the second motion filed, Plaintiff specifies that the amended notice of deposition outlined 19 categories of questioning and Defendant agreed to produce a PMQ/PMK for categories 1-12 but refused to produce a witness for the remaining categories. (Mot. filed 7/17/26 (Mot. 2), p. 4.) Request 13 seeks Defendant's policies governing water intrusion, flooding, sewage backups, etc. (Mot. 2, p. 10.) Requests 14-16 seek information concerning other lawsuits against Defendant during the five years preceding this action. (Mot. 2, pp. 10-11.) Request 17 seeks documents relating to unlawful detainer actions filed by Defendant against other tenants in the preceding five years. (Mot. 2, p. 11.) Requests 18-19 seek information relating to complaints by other tenants against Defendant for wrongful eviction, retaliatory eviction, and other matters. (Ibid.) Plaintiff reiterates that these categories are highly relevant to Plaintiff's claims. (Mot. 2, p. 12.)

In

opposition, Defendant first argues that Plaintiff failed to provide a separate statement as required by California Rules of Court, rule 3.1345, and the motion should be denied on those grounds. Alternatively, Defendant argues that the information sought in the disputed categories is not relevant to the action as Plaintiff does not make "pattern and practice" allegations and the causes of action relate to only her single unit. (Opp., 1.) Defendant emphasizes that this action is about one tenant and one apartment. (Ibid.) Further, Defendant argues that on June 23, 2026, they objected to the extremely broad

and overly burdensome scope of the categories found in the notice of deposition during meet and confer conversations. (Opp., p. 2.) Defendant argues they maintained their objections on June 29, 2026, and once more on July 7, 2026, in communications to Plaintiff. (Opp., pp. 2-3.) Moreover, Defendant argues that Plaintiff noticed the deposition on June 23, 2026, and unilaterally set the deposition for July 2, 2026, only 9 days after notice in violation of the 10-day statutory wait established in Code of Civil Procedure section 2025.270(a). (Opp., 3.) Defendant reiterates that the scope of Plaintiff's deposition is overbroad and overburdensome because it seeks information on any and all complaints made against Defendant. (Opp., p. 5.)

In reply, Plaintiff argues that objections must be written and served on the party noticing deposition. (Reply, p. 3.) However, Plaintiff argues that Defendant did not write down the objections and never served them and also failed to attach proof of objection to their opposition. (Ibid.) Plaintiff also argues that the inquiries into other complaints made against Defendant are relevant to the action because Plaintiff is seeking to determine many facts during discovery including whether this reflects a broader course of conduct. (Reply, p. 5.) Lastly, Plaintiff argues that the absence of a separate statement does not require denial of the motion, citing *In re Marriage of Moore* (2004) 102 Cal.App.5th 1275, and argues that they did not attach Defendant's responses to their motion because Defendant did not provide them. (Reply, p. 6.)

Here, Defendant has failed to provide proof of a valid objection. A valid objection under section 2025.410 is "a written objection specifying that error or irregularity at least three calendar days prior to the date for which the deposition is scheduled, on the party seeking to take the deposition and any other attorney or party on whom the deposition notice was served." (Code Civ. Proc., § 2025.410(a).) In the emails referring to objections provided by Plaintiff, Defendant says they "will be serving" their formal objections but Plaintiff maintains to have never received them. (Mot. 2, Bakhdanyan Decl., Exh. B; Reply, Bakhdanyan Decl., ¶¶ 3-4.) Moreover, Defendant does not attach the objections, or proof of service, in their opposition. Therefore, Defendant has failed to serve valid objections and failed to appear for the deposition and Plaintiff can move to compel under section 2025.450(a). (Code Civ. Proc., § 2025.450, subd. (a).)

Plaintiff has also shown good cause justifying the production for inspection documents and information described in the deposition notice.

Plaintiff seeks information relating to other claims made against Defendants in the last five years which are similar to Plaintiff's claims in an effort to build their case. Notably, in the email exchange presented by Plaintiff, Defendant is "agreeable" to the five-year timespan.

Further, while a separate statement is required for motion to compel or to quash the production of documents or tangible things at a deposition, a separate statement is not required where no response has been provided. (Cal. Rules Ct., Rule 3.1345(a)(5), (b)(1).) Here, as conceded by both parties, no deposition has taken place, and no response has been provided to this discovery request. (Yamabe Decl., ¶ 10; Mot. 2, Bakhdanyan Decl., ¶ 6.)

Accordingly, the motion to compel deposition of Defendant's PMQ/PMK is GRANTED.

Sanctions

"If a motion under subdivision (a) is granted, the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2025.450, subd. (g)(1).)

Plaintiff argues that Defendant has intentionally and willfully misused the discovery process in their refusal to provide PMQ to be deposed. (Mot. 1, p. 10.) Thus, Plaintiff seeks imposition of sanctions. (Ibid.)

Defendant argues that Plaintiff's motion for sanctions is improper and not warranted because they made valid objections to the noticed deposition. (Opp., p. 7.)

Here, Plaintiff is entitled to sanctions because Defendant failed to make valid objections to the noticed deposition and failed to appear. Plaintiff seeks sanctions in the amount of \$2,685.00 reflecting 7.0 hours spent reviewing Defendant's

objections, participating in meet and confer efforts, researching applicable law, preparing this motion, drafting this declaration and memorandum of points and authorities, organizing exhibits, and preparing the proposed order at a rate of \$375 per hour plus a filing fee of \$60. (Mot. 2, Bakhdanyan Decl., ¶¶ 12-13.)

The Court will exercise its discretion in reducing fees to \$1,500.00 reflecting 4.0 hours for drafting the instant motions, preparing declarations and memoranda, organizing exhibits and preparing the proposed order at a rate of \$375, plus the \$60 filing fee.

Accordingly,
the Court awards sanctions in the total amount of \$1,560.00

CONCLUSION AND ORDER

Plaintiff's Motion
to Compel Deposition of Defendant's PMQ/PMK is GRANTED.

Plaintiff's
request for sanction is awarded in the amount of \$1,560 payable by Defendant within 15 days from this ruling.

MOVING PARTY
shall
provide notice and provide a proposed order consistent with this ruling within 5 days from this date.